THE ONLINE GIG WORKERS (WELFARE AND REGULATION) BILL, 2026

(As introduced in the Lok Sabha)

A FICTIONAL BILL WRITTEN ONLY FOR TESTING SOFTWARE. IT IS NOT A REAL BILL AND NOT A REAL LAW.

Ministry of Labour and Employment

(Shri A. Example, Minister of Labour and Employment)

STATEMENT OF OBJECTS AND REASONS

Millions of people in India now earn a living by delivering food, driving taxis, cleaning homes and doing other short jobs booked through online platforms. These gig workers have no fixed salary, no paid leave and no insurance, and they can be removed from a platform without notice or reasons. Platforms use software to track workers and to decide their pay and their ratings, but workers cannot see or challenge these decisions. The Code on Social Security, 2020 mentions gig workers and platform workers but does not give them a clear right to benefits or a way to complain. The Payment of Wages Act, 1936 applies only to workers in fixed employment. The Information Technology Act, 2000 does not protect the personal data of workers collected by platforms. The Departmental Standing Committee on Labour, in its report of 2025, recommended a dedicated law for the welfare of platform workers. This Bill seeks to register platform companies and gig workers, to create a welfare fund, to protect workers from unfair removal and to make the use of worker data fair and transparent.

A BILL to provide for the registration and welfare of online gig workers and for the regulation of platform companies and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventy-seventh Year of the Republic of India as follows:

CHAPTER I - PRELIMINARY

1. Short title, extent and commencement. (1) This Act may be called the Online Gig Workers (Welfare and Regulation) Act, 2026. (2) It extends to the whole of India. (3) It shall come into force on such date as the Central Government may, by notification, appoint.

2. Definitions. In this Act, a gig worker means a person who earns income from short-term work arranged through an online platform, and a platform company means a company that connects workers with customers through a website, a mobile application or any other digital means.

CHAPTER II - REGISTRATION AND WELFARE

3. Registration of platform companies. Every platform company that has more than fifty gig workers shall obtain a licence from the Gig Workers Welfare Board within a period of six months from the commencement of this Act. The registration fee shall be as may be prescribed.

4. Registration of gig workers. Every gig worker shall be registered on a national portal. A worker may register with an Aadhaar number or with any other biometric identity as may be prescribed.

5. Welfare fund. The Central Government shall establish a Gig Workers Welfare Fund. Every platform company shall pay a levy of not less than one per cent and not more than two per cent of its annual turnover into the Fund. The Fund shall be used to provide health insurance, accident cover and a pension to registered gig workers.

6. Notice before removal. A platform company shall not remove a worker from its platform without giving fifteen days notice and a written reason. A worker may appeal against a removal to the Gig

Workers Tribunal.

7. Fair payment. A platform company shall pay a worker within seven days. No platform company shall pay a worker less than the minimum rate per hour fixed by the State Government for that State.

CHAPTER III - DATA AND TRANSPARENCY

8. Personal data of workers. A platform company shall collect the personal data of a worker only with the consent of the worker. A platform company shall not monitor the location of a worker when the worker is not working, and shall not sell the data of a worker to any other person.

9. Algorithmic decisions. A platform company shall explain in simple language how its software decides the pay, the ratings and the work given to a worker. Every platform company shall conduct an annual audit of its software and submit an annual return to the Board.

10. Powers of the Central Government. The Central Government may, by order, exempt any platform company from the provisions of this Act in the public interest, as it may deem fit.

CHAPTER IV - OFFENCES AND PENALTIES

11. Penalty for non-registration. A platform company that operates without a licence shall be punishable with a fine which may extend to ten lakh rupees for each day of default.

12. Penalty for misuse of data. Any person who sells or leaks the personal data of a gig worker shall be punishable with imprisonment which may extend to three years, or with fine which may extend to five lakh rupees, or with both. The offence shall be cognizable and non-bailable.

13. Gig Workers Tribunal. The Central Government shall constitute a Gig Workers Tribunal in each State and Union territory. The Tribunal shall decide a complaint within ninety days.

CHAPTER V - MISCELLANEOUS

14. Retrospective effect. The provisions of section 6 shall be deemed to have come into force on the 1st day of April, 2025, and any removal made after that date without notice shall be reviewed by the Tribunal.

15. Role of State Governments. Every State Government shall appoint an officer to enforce this Act in the State. The State Government may add schemes for gig workers in addition to the Welfare Fund, and the Board shall coordinate with the States.

16. Power to make rules. The Central Government may, by notification, make rules to carry out the purposes of this Act. Rules shall be framed within one year of the commencement of this Act.

17. Repeal and savings. Section 114 of the Code on Social Security, 2020 is amended to the extent provided in this Act, and the Gig Workers Welfare Board established under any State law shall continue to function until it is merged with the Board under this Act.

FINANCIAL MEMORANDUM

The Bill will require an annual grant of about two hundred crore rupees from the Consolidated Fund of India in the first three years until the levy on platform companies begins to fill the Welfare Fund.